Report Intellectual Property Law for the Intervention Recommender (Heijmans Vastgoed)

JM0160 Intellectual Property and Privacy, Assignment 2: Intellectual Property Law

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1 Brief Statement of the Relevant Facts of the Project

1.1 The Intervention Recommender Tool for Heijmans Vastgoed

Heijmans Vastgoed, a Dutch property developer, uses well-being impact scans to identify opportunities in neighborhoods. From these opportunities, interventions can be derived, such as what to change or what to build in the neighborhoods. The scans show opportunities but do not recommend which interventions fit. Our team developed an Intervention Recommender Tool to close this gap: a decision-support application that ranks well-being interventions for a neighborhood using a transparent, weighted scoring model.[1]

The tool is build on a structured database of interventions. Each intervention is classified by theme and category and scored on criteria such as impact, cost, effort, risk and feasibility. The database combines an initial collection of interventions with a list supplied by Heijmans. The initial scores were generated together with generative AI and later evaluated and adjusted through a manual review by the team.[2] The tool is intended to support consultants and project managers, not replace them, and to be scalable across projects.[3]

This report assesses the project in an operational scenario. The following points are assumptions to scope the assignment, not all of them were part of the original project:

1. The team acts as a Dutch data consultancy hired by Heijmans under a proposal that covers scope and fees and contains a confidentiality clause. It has no clause on who owns the intervention list, the combined database or tool.
2. Heijmans' intervention list and impact scan were built internally over several years through its own investment of time and expertise. They are not public and were shared with the team under confidentiality clause only
3. To fill gaps in the database, the consultancy wants to add interventions from a third-party online intervention library, collected by automated means. The library is free to use, but access requires registering an account and accepting terms of use. Those terms prohibit automated access and extraction of the contents. The consultancy also adds one open dataset published under a share-alike license (such as ODbL or CC-BY-SA).
4. Heijmans wants to reuse the tool and the combined database across its worn projects and to offer them commercially to third parties, such as housing corporations and municipalities. The consultancy wants to keep the right to reuse the generic parts of the tool for other clients

2 Analysis of IP Rights Protection

We take each asset in turn and test it against

- the Database Directive (database copyright and sui generis right),
- plain copyright, and
- the Trade Secrets Directive.

All follow the same order: Conclusion → rule → application → rightholder

2.1 Database rights

- Test once: is it a database (Art. 1(2) DD)? Copyright needs original selection or arrangement (Art. 3, AOIC). The sui generis right needs a substantial investment in obtaining, verifying or presenting, and not in creating, with Art. 11 eligibility.
- Apply to:

[1](Heijmans Project Team 2026, secs. 1–3)
[2](Heijmans Project Team 2026, secs. 3.2–3.4, 4)
[3](Heijmans Project Team 2026, secs. 2, 7)

  - Heijmans' list: functional structure, so likely no copyright. Sui generis turns on creating versus obtaining.
  - Library and open dataset: likely protected by sui generis, but you can't verify. Say what you can't know.
  - Combined database: your own investment in verification and presentation, and who is the rightholder.

2.2 Copyright

- Test once: originality, and idea versus expression.
- Apply to the code and tool, the rationales, and the scoring method (the method itself is not protected). Then the AI baseline: no human author.

2.3 Trade secrets

- Test once: secret, commercial value because secret, reasonable steps (Art. 2 TSD).
- Apply to Heijmans' list and scans (the confidentiality clause is the reasonable step), and to your own scoring logic.

3 Assessment of Barriers and infringement

Each block uses: **conclusion → act → right engaged → exception or licence → contract → residual risk**.

3.1 Using Heijmans' list and scans

- Act: copying into the database and scoring.
- Rights engaged (from II.1, II.3): sui generis, trade secret (Art. 4 TSD).
- Contract: the confidentiality clause limits use.
- Residual risk: fine for the Heijmans project, with the open point being anything beyond it.

3.2 Scraping the third-party library

- Act: automated reproduction and extraction, then analysis.
- Rights engaged: sui generis extraction (Art. 7).
- Exceptions: Database Directive Arts. 6(1) and 8(1); Art. 3 DSM (one sentence); Art. 4 DSM (lawful access, opt-out, storage limit).
- Contract (data-mining analysis): the terms ban automated access. Use *Ryanair*: unprotected means only the terms apply; protected means the contractual opt-out removes Art. 4.
- One sentence of sensitivity: with no terms, Art. 4 would apply.
- Residual risk: infringement and breach of contract.

3.3 The open dataset

- Act: adapting the data.
- Licence: share-alike with attribution.
- Residual risk: none if you comply, but the conditions travel with the data.

3.4 Commercial reuse

- Ownership when the contract is silent.
- Scraped library content passing to Heijmans.
- Share-alike versus commercial distribution.
- The consultancy reusing generic parts without Heijmans' confidential list.
- Residual risk: ownership dispute, library owner's claim, licence obligations.

3.5 Overall assessment

What blocks the project, what only needs a step, and what is fine. Include the AI baseline in one sentence.

4 Advice

Technology Statement

During the preparation of this work, we used [NAME TOOL / SERVICE / VERSION] in order to [REASON]. The following parts of the assignment were affected by AI tool usage: [SECTIONS]. After using this tool/service, [NAMES OF STUDENTS] evaluated the validity of the tool's outputs, including the sources that generative AI tools have used, and edited the content as needed. As a consequence, [NAMES OF STUDENTS] take(s) full responsibility for the content of their work.

References

Heijmans Project Team. 2026. *Heijmans: Final Report.* Jheronimus Academy of Data Science.